



Department for  
Science, Innovation  
& Technology

Department for Science, Innovation and Technology  
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[www.gov.uk/dsit](http://www.gov.uk/dsit)

Our reference:

**FOI2026/01543**

9 June 2026

## Our response to your freedom of information request

### Your request

On 16 April 2026, you asked us to provide the following information:

Clarified on 11 May:

Thank you for your clarification request.

For the purposes of my request, I am specifically referring to measures within the Online Safety Act 2023 relating to:

- age verification / age assurance requirements;
- restrictions on children's access to online services or content;
- obligations relating to identifying, profiling, or categorising users by age for online safety purposes.

My request is focused on how the necessity and proportionality of these types of measures were assessed, particularly in relation to the enforcement of existing UK GDPR, PECR, consumer protection, and advertising laws as potentially less intrusive alternatives.

I hope this assists in narrowing the scope of the request.

Any finalised impact assessments, ministerial submissions, or formal briefings created between 1 February 2023 and 31 October 2023 that assess whether enforcement of existing UK GDPR powers (including the Information Commissioner's Office powers under Articles 58 and 83) was considered as an alternative to measures introduced by the Online Safety Act 2023.

This request is limited to formal, finalised documents and does not include general correspondence or internal email discussions.

Where possible, please prioritise documents that explicitly address considerations of

necessity and proportionality.

If this request remains too broad to be processed within the cost limit, I would be grateful for further advice on how it could be refined.

Please treat this as a new request under the Freedom of Information Act 2000.

We have responded to your request for recorded information under the Freedom of Information Act 2000 (FOIA).

**Our response**

We can confirm that the Department for Science, Innovation and Technology (the department) does hold information in scope of your request. However, only one ministerial submission was identified within scope. We are withholding that document in full under section 35(government policy) of the FOIA.

### **Section 35: Formulation of government policy**

The ministerial submission identified within scope of your request is exempt from disclosure under section 35(1)(a) of the FOIA.

Section 35 states:

*(1) Information held by a government department or by the Welsh Assembly Government is exempt information if it relates to-*

*(a) the formulation or development of government policy,*

*(b) Ministerial communications,*

*(c) the provision of advice by any of the Law Officers or any request for the provision of such advice, or*

*(d) the operation of any Ministerial private office.*

The information falls within section 35(1)(a) because it is contained in a ministerial submission concerning the formulation and development of government policy relating to measures under the Online Safety Act 2023, including age assurance and related protections for children online. Ministerial submissions are created to support ministers in considering policy options, evidence, risks and recommendations. In this case, the submission addresses policy development around the necessity and proportionality of the measures in question and forms part of the department's policy-making process. Section 35 is a qualified exemption. With this in mind, we have considered the public interest for and against disclosure.

In applying section 35(1)(a), the department has considered the need to protect a safe space for the ongoing formulation and development of policy in this area and has weighed that against the public interest in disclosure of the ministerial submission.

#### Reasons for release:

- **Transparency:** There is a public interest in transparency around how government considered measures under the Online Safety Act 2023 and the basis on which those measures were assessed.
- **Public understanding:** Disclosure would assist public understanding of how the department considered issues such as necessity and proportionality when developing policy in this area.
- **Accountability:** Releasing information could support accountability by enabling greater scrutiny of the department's consideration of regulatory and policy options relevant to online safety measures.

Reasons for withholding:

- **Protecting a safe space for policy development:** Ministerial submissions are a central part of the policy-making process and are intended to provide ministers with candid advice, analysis and recommendations. Disclosure of this submission would undermine the protected space needed for ministers and officials to consider policy options on a sensitive issue affecting online safety and children's protections.
- **Ensuring free and frank advice to ministers:** The submission contains advice and analysis prepared for ministerial consideration. Officials must be able to present policy options, risks, and assessments candidly so that ministers can make informed decisions. Disclosure would be likely to inhibit the frankness of future submissions and reduce the quality of advice provided.
- **Avoiding disclosure of internal policy consideration:** The document records internal consideration of how particular Online Safety Act measures were assessed, including the department's developing analysis of necessity and proportionality. Releasing that material would expose internal policy development in a way that could create a misleading impression of settled positions or discourage full exploration of options in future.
- **Preserving the integrity of ministerial decision-making:** There is a strong public interest in protecting the process by which ministers receive and consider advice on policy issues. Disclosure of a ministerial submission in full would be likely to prejudice that process by reducing confidence that such advice can be provided within a private and protected policy-making space.

Taking these factors together, the department recognises that there is a genuine public interest in transparency around how these Online Safety Act measures were considered. However, in this case the public interest in maintaining the exemption is stronger. The document identified in scope is a ministerial submission that forms part of the policy-making process, and disclosure would be likely to undermine the safe space needed for candid advice and effective ministerial decision-making. We have therefore concluded that the information to which section 35(1)(a) applies should be withheld.

### **Next steps**

You can ask us to review our response. You can ask us to review our response by sending an email to [foi-requests@dsit.gov.uk](mailto:foi-requests@dsit.gov.uk).

Please remember to quote the reference number above in any future communications.

If we perform a review but you are still dissatisfied, you can complain to the [Information Commissioners Office](#) (ICO).

You should make complaints to the ICO within six weeks of receiving the outcome of an internal review through the ICO website: [www.ico.org.uk/foicomplaints](http://www.ico.org.uk/foicomplaints).

### **Your information**

Our [privacy notice](#) explains what we do with the personal information which you provide to us. Our [personal information charter](#) sets out the standards you can expect from the Department for Science, Innovation and Technology when we collect, hold or use your personal information.

Yours sincerely,

**Department for Science, Innovation and Technology**